Alderwick / Merriweather–Navarro case bundle

Approved jurisdictional snapshot — effective 30 September 2025. This closed bundle is the sole source for the October review. It is not live law and contains unresolved or malformed entries. Labels NS/Nova Scotia and ME/Maine are used inconsistently in the raw material.

Prepared for Jasmin Kaczmarek; review recipients Helena Reinholt and Callum Khouri. Export assembled 18 October 2025.

1. Client communication (email)

From: Dagny Merriweather **Date:** 04 October 2025 **Subject:** Where should we retire?

“We expect to sell my share of Alderwick Systems in the spring. Emeka retires from Inglewood Networks in March. Could you compare Nova Scotia and Maine, keep it simple, and give us something we can decide from by the end of October?”

Forwarded copy: Subject “Re: NS or ME”; forwarded 07 October 2025. “We expect to sell my share of Alderwick Systems in the spring. Emeka retires from Inglewood Networks in March. Could you compare Nova Scotia and Maine, keep it simple, and give us something we can decide from by the end of October?”

Advisor intake note, 09 October 2025: The file does not say whether the immediate choice is sale-year residence, long-term settlement after sale, or both. Citizenship, immigration status, green-card history, day counts, home availability, and exact sale/move sequence are not recorded.

2. Identity, timing and financial extract

Field	Retained source record
Dagny Merriweather	Age 61 at intake (09 Oct 2025); shareholder in Alderwick Systems; expects sale “in the spring” after October decision.
Emeka Navarro	Retires 31 Mar 2026 from Inglewood Networks; birth date 30 Nov 1961 (turns 65 on 30 Nov 2026).
Decision horizon	Client asks for a usable decision by 31 Oct 2025; internal review due 18 Oct 2025, 4:00 p.m. Atlantic.
Alderwick share	Estimated gross proceeds CAD 1,250,000; provisional tax basis CAD 350,000. Ownership history, entity/share character, busines
Registered accounts	Dagny RRSP CAD 420,000; Dagny TFSA CAD 88,000 (balances at 30 Sep 2025).
Inglewood plan	Emeka account balance USD 310,000 at 30 Sep 2025. Valid administrator extract says legal plan type and distribution form are r
Currency convention	For presentation only: 1 USD = 1.36 CAD on 30 Sep 2025. Tax filings may require prescribed dates/conventions.

Legacy system field extract — transaction timing: “spring 2026?”; basis field: “CAD 350,00O”; benefits plan label: “401(k?)”.

3. Employer coverage and health extracts

Record	Detail
Current Inglewood coverage	Employer medical coverage for Emeka and spouse through 31 Mar 2026, subject to plan terms.
Continuation notice	A notice says continuation may be available for up to 18 months; election within 60 days; employee + spouse premium show
NS public coverage snapshot	Eligibility depends on Nova Scotia residence and physical presence. In this dated snapshot, coverage is effective the first da
Maine individual market	Preliminary 2026 quote: USD 1,120/month for two adults age 60–64. It is an illustrative quote, not proof of eligibility or enrolln
Irrelevant sample row	“Northstar Gold 2026” USD 315/month, single adult, marketing sample; not for this couple and excluded.

Coverage timing implication: Emeka is retired and under 65 from 31 Mar 2026 until 30 Nov 2026 (about 8 months). Ordinary Medicare eligibility is not created merely by retirement or relocation before 65; disability or other statutory exceptions are separate and not established here.

4. Approved Canadian material (snapshot 30 Sep 2025)

• Canadian tax residence is fact-dependent, based on residential ties and circumstances; it is not determined solely by an address, citizenship, days, or preference.

• Nova Scotia provincial tax follows applicable residence/allocation rules for the relevant year; it is not a nationality-based tax.

• If Canadian residence ends while applicable property is held, a Canadian departure-tax deemed disposition may apply subject to asset-specific rules. An actual spring sale and any deemed disposition require sequencing and basis coordination; do not add two gross charges automatically.

• Business-share relief or a capital-gains exemption is conditional on eligibility, share/entity facts, ownership history and available room; selling business shares alone does not establish entitlement.

• Canadian registered accounts require separate analysis of continued account status, withdrawal taxation, nonresident withholding by account/payment type and any treaty rate, plus provider access. Retaining an account is not tax-free withdrawal.

• Foreign tax credits are limited by source, income category, timing, domestic tax, creditability and prescribed currency conversion; two countries taxing an item does not guarantee dollar-for-dollar recovery. A credit can be stranded when recognition years or character differ, or residence-country tax is insufficient.

5. Approved US federal and Maine material (snapshot 30 Sep 2025)

• US federal tax residence may depend on citizenship or immigration status and physical-presence tests. A Maine home alone does not create or avoid US federal residence.

• Canada–US treaty tie-breakers apply only when both domestic systems treat the person as resident; they are not a free election of the more favorable country.

• Immigration permission to live in Maine, tax residence, and health eligibility are distinct questions.

• Maine resident taxation and Maine-source taxation are separate. Nonresidence does not necessarily remove all Maine filing or source exposure; residence does not make every receipt Maine-source.

• For Canadian registered accounts, any US federal treaty deferral/reporting treatment is limited to its stated scope and does not eliminate all US reporting or state issues. Maine treatment must be analyzed separately; federal treatment is not automatically Maine treatment.

• Inglewood plan consequences depend on legal plan type and distribution form (periodic or lump-sum). Payer withholding may apply, but withholding is not final liability. If Canadian-resident when paid, Canada may tax a US-plan distribution; US withholding does not make it exempt. Treaty treatment remains conditional on characterization and form.

6. Approved coverage and operations material (snapshot 30 Sep 2025)

• Nova Scotia public coverage requires applicable residence and physical presence; property ownership, tax filing or preference alone do not qualify. The snapshot’s first-day-of-third-month effective rule remains conditional on completed eligibility and enrollment.

• Public provincial coverage is not unrestricted routine insurance for extended US stays or routine care in Maine.

• Employer continuation (including any COBRA-like right) depends on plan applicability, election, duration, cost and network usefulness; moving does not automatically create comprehensive cross-border coverage.

• Maine individual-market coverage is enrollment- and eligibility-dependent, with timing relevant to avoiding a gap; moving or retiring does not automatically enroll the couple.

• Custodian and plan-administrator restrictions are operational facts requiring confirmation, not tax-law prohibitions. Exact beneficiary changes and withdrawal scheduling can wait until plan/account classification is confirmed.

End of bundle.